UNITED STATES DISTRICT COURT — NORTHERN DISTRICT OF CALIFORNIA, OAKLAND DIVISION

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. AMAZON.COM SERVICES, LLC and ACCURATE BACKGROUND, LLC, Defendants.

Case No. 4:26-cv-09249-ASK — Hon. Ajay S. Krishnan

Plaintiff's First Requests for Production to Amazon.com Services, LLC

DRAFT — NOT FILED OR SERVED

Under Fed. R. Civ. P. 26 and 34, Plaintiff requests the documents below. If delivered under Rule 26(d)(2) before the Rule 26(f) conference, deemed service occurs at the first actual conference.

Definitions and instructions

1. "Plaintiff" means the plaintiff in this action under the names and name variants used in the relevant hiring and screening records. "You" means the responding defendant and responsive personnel, agents, repositories, and systems in its possession, custody, or control.

2. "Application" means Plaintiff's 2026 Seasonal XL Warehouse Associate application at Amazon's Fremont facility. "Screening Order" means Accurate reference 496623722 and related component search IDs.

3. "Document" includes electronically stored information, messages, emails, portal entries, application and screening records, audit logs, metadata, and native exports within Rule 34.

4. Unless a particular request provides otherwise, the period is July 1–November 15, 2026, and the requests concern Plaintiff's application and screening. Policies need only be produced in versions operative at relevant times.

5. Preserve original timestamps, time zones, event IDs, meaningful metadata, report versions, account identifiers, and attachments. Produce structured records in reasonably usable CSV/JSON/native exports with data dictionaries; do not substitute screenshots where native data is available.

6. For any objection, identify its specific basis and whether material is withheld; produce nonprivileged portions and log privileged withholdings as required by Rule 26(b)(5). Produce within the applicable Rule 34 deadline unless otherwise agreed or ordered.

Requests for Production

REQUEST FOR PRODUCTION NO. 01. Produce the complete application and candidate profile for Plaintiff’s 2026 Seasonal XL Warehouse Associate position at the Fremont, California facility, including original entries, submitted answers, revisions, audit history, field-level timestamps, applicant account identifiers, and the native or structured export of the application data.

REQUEST FOR PRODUCTION NO. 02. Produce all event histories, status-change records, audit trails, and records of actor or automated-service identity from Simple Hire and any applicant tracking, recruiting, or workforce staffing system concerning Plaintiff’s July 2026 application, including the state of each onboarding checklist item and each change to a background-check or shift status.

REQUEST FOR PRODUCTION NO. 03. Produce Plaintiff’s July 2026 offer and related scheduling records, including the July 28 training/start assignment, seat or capacity reservation, modifications, deletion or release of that assignment, and records of any available or offered replacement shift through October 31, 2026.

REQUEST FOR PRODUCTION NO. 04. Produce all reason codes, disposition codes, comments, decision records, event triggers, approval or override records, and supporting data for any change that removed Plaintiff's confirmed training shift or changed Plaintiff's application from July 3 through October 31, 2026.

REQUEST FOR PRODUCTION NO. 05. Produce nonprivileged communications, messages, case notes, technical tickets, and attachments exchanged in the ordinary course of business between Amazon and Accurate concerning Plaintiff or screening order 496623722, from July 1 through November 15, 2026.

REQUEST FOR PRODUCTION NO. 06. Produce every consumer-report version, preliminary finding, component result, status flag, adjudication indicator, eligibility designation, alert, or related screening communication concerning Plaintiff that Amazon received, viewed, downloaded, or could access in an Accurate system from July 7 through November 15, 2026.

REQUEST FOR PRODUCTION NO. 07. Produce logs showing transmission, receipt, retrieval, display, viewing, download, API delivery, or modification of screening information for Plaintiff, identifying timestamps, system events, relevant user or service-account identifiers, and report or result version IDs.

REQUEST FOR PRODUCTION NO. 08. Produce the data and messages by which Amazon supplied or modified Plaintiff's name, aliases, date-of-birth fields, address history, prior-conviction responses, or other identity data for screening order 496623722, including the origin and timestamp of any value resembling "NEWANSORBI."

REQUEST FOR PRODUCTION NO. 09. Produce the employment-background-check disclosure and authorization records for Plaintiff and all proposed, generated, queued, delivered, failed, or suppressed pre-adverse-action and adverse-action notices, summaries of rights, copies of reports, associated delivery logs, and workflow records through November 15, 2026.

REQUEST FOR PRODUCTION NO. 10. Produce any individualized assessment, conviction-history review worksheet, preliminary or final decision record, written notice, response opportunity, reconsideration record, or automated substitute for such an assessment relating to Plaintiff's application.

REQUEST FOR PRODUCTION NO. 11. Produce support tickets, exception queues, identity-reverification requests, hold records, review notes, escalations, and ordinary-course communications concerning delays or processing exceptions in Plaintiff's screening, including referrals to Accurate.

REQUEST FOR PRODUCTION NO. 12. Produce nonprivileged emails, chat messages, staffing notes, or internal communications by employees who handled Plaintiff's application concerning the screening status, training assignment, eligibility, cancellation, or rescheduling, from July 1 through October 31, 2026.

REQUEST FOR PRODUCTION NO. 13. Produce versions of the written policies, operating instructions, and training materials in force for the Fremont Seasonal XL position during July–August 2026 governing background checks that remain pending when a confirmed training or start date arrives, including shift cancellation, expiration, reassignment, and rescheduling.

REQUEST FOR PRODUCTION NO. 14. Produce versions in force during July–October 2026 of the screening eligibility criteria, review or escalation rules, automated status mappings, and authorization criteria applicable to Plaintiff's Seasonal XL position; limit any broader materials to the portions applicable to that hiring workflow.

REQUEST FOR PRODUCTION NO. 15. Produce the portions of Amazon's agreements, statements of work, screening-order configuration, and technical interface specifications with Accurate effective during July–October 2026 that define services, report delivery, decision-making responsibility, compliance duties, or notice generation for the applicable screening package.

REQUEST FOR PRODUCTION NO. 16. Produce certifications furnished by Amazon to Accurate for screening order 496623722, or the applicable account-wide certifications in effect at that order's creation, concerning permissible purpose and compliance with federal and California employment-screening laws.

REQUEST FOR PRODUCTION NO. 17. Produce the July 2026 job posting and pay terms for the offered position, scheduled paid training hours, expected position duration and benefits, together with records sufficient to show whether an equivalent replacement training or start slot was offered to Plaintiff before October 31, 2026.

REQUEST FOR PRODUCTION NO. 18. Produce data dictionaries, status-code definitions, event-type mappings, report-version identifiers, and ordinary-course documentation necessary to interpret responsive system records produced in response to Requests Nos. 1–17.

Dated: _____ Signature: _____

Brendan Ngwa Nforbi, Plaintiff in Propria Persona

1455 Cat Tail Drive, Stockton, CA 95204 · (209) 801-4442 · bnn.cdl@gmail.com

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Case No. 4:26-cv-09249-ASK — Hon. Ajay S. Krishnan

Plaintiff's First Interrogatories to Amazon.com Services, LLC

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Pursuant to Fed. R. Civ. P. 33, answer each interrogatory separately and fully in writing under oath within the time allowed by Rule 33, including the identity of the person furnishing each answer. The relevant application and order are defined in the RFP Set One above.

INTERROGATORY NO. 01. Identify the specific reason reflected in Amazon's ordinary-course records for removal or expiration of Plaintiff's confirmed July 28, 2026 training assignment.

INTERROGATORY NO. 02. Identify the person, automated rule, or application service that executed the status change addressed in Interrogatory No. 1.

INTERROGATORY NO. 03. State the final disposition of Plaintiff's July 2026 Seasonal XL application and the effective date of that disposition.

INTERROGATORY NO. 04. Identify each category of information or status update received from Accurate concerning Plaintiff before July 28, 2026.

INTERROGATORY NO. 05. Identify each Amazon application, recruiting, screening or scheduling system that maintained substantive records concerning Plaintiff's July 2026 application.

INTERROGATORY NO. 06. State the recorded source of the value "NEWANSORBI" in any data Amazon supplied to Accurate for order 496623722, or state that Amazon has no record of supplying that value.

INTERROGATORY NO. 07. State whether conviction-history information or sex-offender-registry information was considered in deciding Plaintiff's eligibility for the Seasonal XL position, identifying which category if either was considered.

INTERROGATORY NO. 08. Identify the Amazon role or business unit responsible for determining whether and when to send pre-adverse-action and Fair Chance Act notices in connection with Plaintiff's application.

Dated: _____ Signature: _____

Brendan Ngwa Nforbi, Plaintiff in Propria Persona

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Plaintiff's First Requests for Admission to Amazon.com Services, LLC

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Under Fed. R. Civ. P. 36, admit or deny each statement specifically, or explain in detail why you cannot truthfully do so after reasonable inquiry. Respond within the applicable Rule 36 period.

REQUEST FOR ADMISSION NO. 01. Admit that Amazon extended Plaintiff a conditional offer for a Seasonal XL Warehouse Associate position at its Fremont, California location during July 2026.

REQUEST FOR ADMISSION NO. 02. Admit that Amazon requested a background screening of Plaintiff from Accurate for that position.

REQUEST FOR ADMISSION NO. 03. Admit that Amazon maintained electronic records of Plaintiff’s background-screening status during July 2026.

REQUEST FOR ADMISSION NO. 04. Admit that the applicant-facing Simple Hire system displayed no selected shift when Plaintiff viewed his checklist on July 27, 2026.

REQUEST FOR ADMISSION NO. 05. Admit that Amazon previously scheduled Plaintiff for training beginning July 28, 2026.

REQUEST FOR ADMISSION NO. 06. Admit that Amazon maintains system records capable of identifying changes to Plaintiff’s July 2026 training assignment.

REQUEST FOR ADMISSION NO. 07. Admit that Amazon did not deliver to Plaintiff, on or before July 27, 2026, a written pre-adverse-action notice attaching a copy of an Accurate consumer report concerning the July 2026 application.

REQUEST FOR ADMISSION NO. 08. Admit that Amazon’s July 2026 offer terms contemplated selection of a new start date or schedule if pre-employment requirements were not completed in time.

Dated: _____ Signature: _____

Brendan Ngwa Nforbi, Plaintiff in Propria Persona

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